

Class Participation & Waiver of Liability Agreement

Thank you for participating in the SOMA Breath event you have signed up for, which may consist of a class, a retreat, or a series of classes (collectively, the "**Class**"), taught by Samantha Harden and designated teachers or volunteers (collectively, the "**Teachers**").

By participating in the Class, you agree to the following terms and conditions. Please read carefully — these terms protect both you and your Teachers, and they include important safety information.

1. Nature of the Class

1.1 The information presented during the Class — including ideas, suggestions, techniques, training, exercises, initiations, processes, activities, energetic activations, empowerments, downloads, instructions, and other materials (collectively the "**Materials**") — is educational in nature. It is provided as general information only and is not medical or psychological advice.

1.2 The Class is experiential and focuses on personal growth and well-being. It is not a treatment for any physical, emotional, or mental disorder. You agree to consult your healthcare providers regarding any specific medical, emotional, or psychological conditions before participating, and to take full responsibility for your self-care during and after the Class.

1.3 Any stories or testimonials shared before or during the Class do not constitute a warranty, guarantee, or prediction regarding your experience. The Teachers make no warranty, guarantee, or prediction that you will experience any particular state of awareness, consciousness, or outcome. Because the Class includes group processes in which you may voluntarily share personal information, you acknowledge that other participants are not bound to confidentiality, although the Teachers will treat your information with reasonable discretion.

1.4 Anything discussed with a Teacher or another participant is offered as a perspective for you to consider. Your participation does not create or establish a client-practitioner relationship or any other therapeutic or professional relationship between you and the Teachers.

1.5 By participating in the Class, emotional or physical sensations may surface which could be perceived as uncomfortable. If you experience any distressing reactions during the Class, you agree to ask for support from one of the Teachers.

2. Health & Safety

2.1 Contraindications: Slow, rhythmic breathing techniques are generally safe for most people. Breath holds should NOT be practiced in any of the following cases: recent surgery, epilepsy, pregnancy in the third trimester, serious heart conditions (e.g. pacemaker, uncontrolled high blood pressure, or recent heart attack).

In most other cases, the practice is considered safe. We invite you to listen to your body, reduce the intensity if needed, or skip breath holds at any time.

Safety: Always practice seated or lying down. Never in water, never while driving.

2.2 Mental Health Acknowledgment — If you have a history of severe anxiety, trauma, dissociation, psychosis, or are currently in active mental health treatment, you agree to consult your provider before participating, and to share any relevant information with your Teacher in advance to the extent you feel comfortable doing so.

2.3 Substance Use — You confirm that you are not under the influence of alcohol or recreational drugs at the time of participating in the Class.

3. Waiver of Liability

3.1 You represent that you are competent and able to understand the nature and consequences of participating in the Class, and that you are an adult under the laws of the state or country of your residence. If you are a minor, your parent or legal guardian represents that you are competent and able to understand the nature and consequences of your participation.

3.2 You understand that your participation in the Class is strictly voluntary and at your own risk. Because the Class is experiential and the full extent of its risks and benefits is not known, you accept full and complete responsibility for any known and unknown risks associated with your participation, including any physical injury, psychological or emotional effects, death, loss, or property damage.

3.3 You acknowledge that SOMA Breath Inc. does not sponsor or conduct the Class, and that the Class is sponsored and conducted by the Teachers. You agree to release the Teachers, employees, volunteers, and any independent contractors of the Teachers from any liability resulting from your participation in the Class. You and your heirs agree to fully release, indemnify, hold harmless, and defend the Teachers, employees, volunteers, and independent contractors — and SOMA Breath Inc. — from any and all claims or liability for any damage or injury (including financial, personal, emotional, psychological, medical, or otherwise) arising at any time as a result of your voluntary decision to participate in the Class, **except to the extent caused by the gross negligence or willful misconduct of the Teachers, employees, volunteers, independent contractors, or SOMA Breath Inc.**

3.4 In the event of an accident, injury, or sickness, you authorize the Teachers, employees, volunteers, and independent contractors to seek medical attention and authorize emergency medical treatment if necessary. The Teachers will first attempt to contact your authorized emergency contact, unless it is not feasible or practical. The Teachers, employees, volunteers, and independent contractors will not be held liable for any accident, injury, sickness, death, loss, or property damage arising out of or in connection with such authorized emergency treatment.

3.5 You agree to hold harmless the Teachers, employees, volunteers, and independent contractors from any damages or costs, including court and attorney's fees, that may be incurred due to your participation in the Class.

3.6 You agree and understand that the Class may be filmed, photographed, and/or recorded, and that the Teachers shall have all rights in and to such film, photographs, and/or recordings, including the copyright. The Teachers may use, re-use, publish, re-publish, reproduce, modify, and display any such film, photograph, and/or recording for educational and promotional purposes, including but not limited to audio, video, websites, and printed materials. You grant the Teachers this right without compensation, and waive any right you have or may later acquire in any such material. If you do not wish to be filmed, photographed, or recorded individually, please notify your Teacher in writing before the Class begins. The Teachers will use reasonable efforts to honor such requests, although they cannot guarantee exclusion from group footage. You agree not to record by audio, video, photographic, or any other means any portion of the Class.

3.7 Any matters in dispute between the parties to this Agreement — whether arising from the Agreement itself or from alleged extra-contractual facts before, during, or after the Agreement, including without limitation fraud, misrepresentation, negligence, or any other tort or contract violation — shall be governed by, construed, and enforced in accordance with the laws of England and Wales. If any portion of this Agreement is held invalid, the balance shall continue in full force and effect. This Agreement is binding upon you and your heirs, family, legal representatives, successors, and assigns.

3.8 This Agreement constitutes the entire and final agreement between the parties and supersedes any prior oral or written agreements, discussions, or understandings. It may not be modified except in writing, signed by both parties.

Acknowledgment

By signing below, you acknowledge that you have:

- Read and fully understood this Agreement;
- Had the opportunity to ask questions and have them answered to your satisfaction;
- Reviewed Section 2 (Health & Safety) and confirmed your eligibility to participate;
- Agreed to all terms and conditions stated above.

Participant

Print name: _____

Signature: _____

Date: _____

If participant is under 18 — Parent or Legal Guardian

Print name: _____

Signature: _____

Date: _____

Relationship to participant: _____

Emergency Contact Information

Name: _____

Relationship: _____

Home phone: _____

Mobile phone: _____

Email: _____

Please return a signed copy to samantha@miraclebreath.co.uk before your first session.